

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

HANGZHOU QIANWANG DRESS CO., LTD., *Complainant*

v.

RDD FREIGHT INTERNATIONAL INC., *Respondent*.

DOCKET NO. 17-02

Served: May 15, 2019

BEFORE: Erin M. WIRTH, *Administrative Law Judge*.

REMAND BRIEFING SCHEDULE

On March 7, 2019, the Commission issued an Order Vacating and Remanding Initial Decision. On March 26, 2019, an Order Requiring Joint Status Report was issued, which required the parties to “agree on a proposed schedule for any additional discovery, Complainant’s remand brief, Respondent’s remand opposition brief, and Complainant’s remand reply brief. The proposed schedule should be included in the joint status report” which was due on April 26, 2019. March 26, 2019, Order Requiring Joint Status Report.

In a letter dated April 11, 2019, pro se Complainant indicated that he attempted to meet with Respondent’s counsel but was not able to work out an agreement. April 11, 2019, Letter at 1. In a letter dated April 30, 2019, Respondent’s counsel indicated that he spoke to Complainant but was unable to work out anything. Respondent’s counsel also indicated that RDD does not anticipate any more discovery; RDD submits that the claim was settled in China; and, that “Petitioner has the prima facie burden of proving that the alleged violation committed by RDD ‘occurred on a normal, customary and continuous basis’ under the new interpretive Rules.” April 30, 2019, Letter at 1.

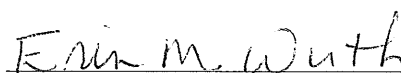
In addition, our office received a number of emails from Complainant indicating that he has been trying repeatedly to contact Respondent’s counsel. Respondent’s counsel was copied on the emails. At this point, it seems unlikely that the parties will be able to negotiate a resolution and there is no need for the parties to speak directly with each other.

The parties have not requested any further discovery and neither provided a proposed schedule for additional briefing. However, they were told that they would be given an opportunity to file briefs to supplement the information that has already been filed. If there is any additional evidence, it should be filed with Complainant’s Remand Brief or Respondent’s Remand Opposition Brief.

As the person who filed this complaint, Complainant has the burden of proof and will need to establish that any alleged section 41102(c) violation occurred on a normal, customary, and continuous basis or otherwise address the Commission's interpretive rule. Respondent will have an opportunity to respond to Complainant's Remand Brief. Complainant may reply to the arguments in Respondent's opposition. The parties should only address the Ningbo Maritime Court settlement agreement if they have provided new evidence about the settlement.

As set forth above, the parties are hereby **ORDERED** to comply with the following deadlines for filing their remand briefs:

May 30, 2019	Complainant's Remand Brief
June 14, 2019	Respondent's Remand Opposition Brief
June 21, 2019	Complainant's Remand Reply Brief.



Erin M. Wirth
Administrative Law Judge